

PDF file name: Project_muse_2012-A Geography of Human Rights Abuses

Original article word count: 8357

Extracted content word count: 3252 (38% of the original word count)

Title of the article: *A Geography of Human Rights Abuses*

The content extracted is as follows:

A Geography of Human Rights Abuses

Although geography as a discipline is not commonly associated with describing and explaining human rights abuses or providing policy remedies for such abuses, it would seem that many feel it definitely should be.

Rex Honey, for example, has issued an explicit call for political geographers to lend their expertise to the study of human rights.¹ He stresses three points in his plea for geographers to engage in such research.

Oddly enough, only one article by a geographer has ever appeared in the Human Rights Quarterly.² This anomaly pervades the main professional organization of geographers, the American Association of Geographers (AAG), which sponsors a cooperative program with the American Association for the Advancement of Science (AAAS).

Its goal is to expand an array of projects and programs to engage geographers as scientists in human rights issues.

One such session at the 2009 meetings was a workshop entitled Human Rights 101 for Geographers.⁴ It is apparent that the professional commitment and infrastructure for geographers to contribute to the study of human rights is now in place.

The above discussion notwithstanding, geographers have in fact published a considerable body of literature on the subject of human rights, but the vast amount of it has appeared in geographic journals.

For example, in the Political Geography Quarterly, some 132 articles with human rights as a focus were published between 1982 and 1991; in Political Geography, between January 1992 and June 2011, some 712 articles with human rights as a focus were published; geographers also published some 833 human rights related articles in Antipod: A Radical Journal of Geography, over the period January 1997 through June 2011.

These materials demonstrate that geographers have made meaningful, albeit unrecognized, contributions to understanding the relationships between human rights abuses and borders, development,⁵ environmental, ethnic, land and resource conflicts, and social justice.⁶ Furthermore, the use of GIS and Remote Sensing has permitted the documentation of where abuses have occurred even when it is difficult for observers to directly visit suspect locations.⁷ Why then are insights of geographers not part of the human rights discourse?

First, to satisfy the demands of department heads, tenure committees, and deans, geographers interested in human rights publish almost exclusively in geography journals, especially those that focus on political geography.

Moreover, regardless of where geographers publish, they rarely refer to the broader human rights literature.

By fulfilling this goal it is hoped that on the one hand those in the field of human rights research will consider looking to geography for insights and new paths of research, and on the other hand that geographers will explicitly include the human rights literature in their work.

The question I wish to explore is whether or not there has been a change in the prevalence of the spatial patterns of human rights abuses over the period 1986-2006.

There are ample reasons to speculate that such changes might or should have occurred. The end of the Cold War, the fall of the Soviet Union, the 1997 Asian Financial Crisis, the spread of globalization and economic development, and the end of the dirty wars in Latin America have all had the potential for enhancing respect for human rights and reducing human rights abuses.

So my working hypothesis will be that related sets of economic and political changes have in fact led to improvements in human rights, and that such improvements can be seen in an examination of maps showing human rights abuses over time.

Possible changes in the spatial distribution of human rights abuses are dealt with as follows: first, the data set used will be presented; then, maps of the number, percent, and prevalence of human rights abuses will be described and analyzed. Finally, materials that can provide an explanation for the maps and an answer to the question regarding possible changes in the spatial distribution of rights abuses will be presented. Over the past twenty-five years the significant increase in the number of governmental and nongovernmental organizations (NGOs) concerned with human rights situations has spawned a plethora of topical and regional reports devoted to the status of those rights.

Each month, AI provided members of the initiative with three letters to be sent to heads of government or state, ministries of justice, or law enforcement officials, each letter describing a specific case of human rights abuse in their country.

Some countries with questionable human rights records, such as North Korea (the Democratic People's Republic of Korea), have never been cited in these letters, presumably because AI does not have field workers there to identify, report, verify, and continuously monitor abuses.

In addition to the country and date of alleged abuses, the following information was extracted from the letters: the precise nature of the abuse or abuses, the number and names of individuals said to have been abused, and any extenuating circumstances, such as abuse targeting human rights, or labor union activists.

At first glance the map showing the prevalence of human rights abuses for the entire study period (Figure 2) seems cluttered and difficult to interpret.

A regional¹² breakdown (Table 2) of the percent of countries that were accused of human rights abuses further qualifies our first impression of the map.

There is a wide range of what percent of each region's countries were cited. The Pacific Basin (including Australia and New Zealand) and the Caribbean Basin appear relatively immune to human rights abuse.

A regional subdivision of Europe suggests that Eastern and Southern Europe are more prone to human rights abuses than the Western and Northern sections.

Finally, by looking at the citation records for individual countries (Tables 3 and 4) it is possible to see which countries are the chronic abusers of human rights.

These findings parallel those of Diamond and Richards, both of whom argue that the geographic patterns of human rights performance appear to reflect major cultural or civilizational roots.¹³ There is one disadvantage to relying on a map showing the prevalence of abuse citations: it is lacking a demographic context.

Using this metric, twenty countries out of the 120 cited for human rights abuses can be considered the worst abusers (Table 6).

Finally, the map of locational quotients of human rights prevalence (Figure 1) needs to be analyzed. In some ways this metric may be considered a fair share approach to describing the distribution of human rights abuses, since the location quotient compares a country's share of the total number of abuses with its share of the total world population.

We thus can get a sense of which countries are over or under represented in the spectrum of human rights abusers.

By this standard then, thirty-two countries, including China (which by the sheer number of citations can be considered a major rights abuser) with location quotients below 1.00 appear to have abuse rates lower than we might expect given the size of the populations.

Moreover, it will come as no surprise that countries that underwent devolution and civil wars, such as Yugoslavia and the USSR, have experienced a prevalence of human rights abuses in excess of the size of their populations.

Due to its presidential system of government, the country is still cited for human rights abuses, especially in regard to the handling of political dissidents and labor rights.¹⁶ In addition to allowing for the exploration of the different ways to describe the distribution of human rights abuses, the database I worked with contained information regarding the types of abuses practiced in each country.

Even the HIV/AIDS epidemic generated discrimination and abuse.¹⁹ In the Former Soviet Union abuse changed after 1991 from terror and torture to official regulation and discrimination.²⁰ It is clear from the description and analysis of the maps and the supporting statistics in Tables 1-8 that the initial speculation that there should have been changes in the spatial patterns of human rights abuses showing an improvement in

human rights conditions was incorrect.

The broad literature on human rights suggests the following as possible explanations for the lack of progress in reducing human rights abuses: While some of these possible explanations may seem self-evident and clear, others require some explication.

Government should get out of the business of supplying services, all areas of social provision should be privatized, and all sectors of the economy should be deregulated. The proper functioning of the resulting system relies on personal responsibility.³⁹ The adoption of neoliberalism by authoritarian governments frequently as part of IMF adjustment policies⁴⁰ can, however, be associated with gross violations of human rights, increasing income distribution disparities, and high, short-term social costs, especially for migrants.⁴¹ Thus, one can point to another of the many paradoxes of human rights abuses and the process of democratization: democracy allows for an easier acceptance of neoliberalism,⁴² so neoliberal ideology presents itself as pro-democracy and pro-human rights.⁴³ At the same time, however, it can be characterized as remote from human rights concerns.⁴⁴ The case can also be made that since neoliberalism became the preferred framework for restructuring global capitalism, it has led to the emergence of authoritarianism despite neoliberal beliefs that authoritarianism hinders economic development.⁴⁵ Furthermore, the neoliberal emphasis on reducing the size and scope of state agencies devoted to meeting social needs has the potential to weaken the very groups that seek to implement human rights.⁴⁶ There is no consensus about the impact of globalization on human rights.

Virtually every social science has its own definition of globalization and therefore a preferred way of measuring its impact.⁴⁷ Thus, any debate regarding any link between globalization and human rights abuses suffers from conceptual, methodological, and measurement problems and results in variable and fragile conclusions.⁴⁸ Moreover, it is not clear how the contemporary globalization differs from previous ones.⁴⁹ Nevertheless there have been attempts to specify as precisely as possible how globalization might be affecting human rights.

At one extreme, globalization with its emphasis and reliance on rapid communications⁵⁰ can speed up diffusion of the ideas of human rights, make it easier to expose human rights infractions, and conduct global consumer campaigns against abuses such as abusive labor practices.

The Asian claim seem to revolve around four issues: a desire to push back against the West for past grievances and exploitation;⁸³ fear of being exposed to further exploitation due to globalization and neoliberalism;⁸⁴ belief that the West is in decline and can be challenged; and the wish to protect cultural diversity.⁸⁵ In contrast, the Islamic claim is thought to revolve around three issues: the need to insure that the UDHR is not part of a culture war against Islam;⁸⁶ the desire to reject Western values as part of jihad;⁸⁷ and eagerness to preserve Islamic values regarding women's issues, the status of minorities, religious freedom, and corporal punishment.⁸⁸ Western critics of the exceptionalist claim point out that in Asian and Islamic countries economic and social rights were not formally enacted or implemented, let alone fully protected.⁸⁹ The West, too, has strong traditions of family and social responsibility, as well as work and savings ethics.⁹⁰ Critics argue that the adoption of any new technologies and business practices, regardless of the place of origin, requires other cultural adaptations over time.⁹¹ Further, rights derived from obligations or duties are not true rights.⁹² Economic success in Asian and Islamic countries occurred before the adoption of authoritarian capitalism and any discussion of Asian or Islamic values.⁹³ Finally, modernization is not equivalent to Westernization.⁹⁴ In summary, as an explanation for the persistence of human rights abuses, exceptionalism is a debatable basis for either rejecting UDHR and substituting non-Western alternatives or for justifying outright violations of human rights.

Hypocrisy, inconsistencies, and appeasement by Western democracies (and especially the United States and Britain) when citing countries for human rights abuses are seen as major reasons countries continue to ignore human rights abuses.

Human rights conventions have minimal enforcement mechanisms, making violations feasible.¹¹⁴ Sanctions are rarely imposed, and if they are, they are not onerous.¹¹⁵ Similarly, given the fact that human rights treaties can contain both instrumental and expressive elements,¹¹⁶ some signatory nations assume that there will not be strict enforcement or implementation since no one is going to take the exalted ideals of the UDHR seriously enough to actually demand that nations make the adjustments necessary to comply with them.¹¹⁷ Abuses can also be readily blamed on the social and political tensions that develop as economic development progresses¹¹⁸ or on popular¹¹⁹ or elite demands.¹²⁰ Habitual behavior, where abuses are seen as normal opportunistic events, can also be blamed for abuses.¹²¹ Authoritarian governments attempt to justify continued abuses as ways to suppress terrorism, defeat Marxist-Leninist guerillas, or restore law and order.

For example, in Latin America human rights abuses appear to be a paradox, because historically there is a long tradition of concern for human rights throughout the region.¹²³ After World War II, Latin American countries were more open to advocating

universal human rights than even the United States or Great Britain, and they sent delegations to United Nations conferences on human rights better prepared than any other group to engage in serious debate and discussion.¹²⁴ Nevertheless, as military rule and authoritarianism spread across the region, a wide range of human rights abuses, including those against women, children, indigenous peoples, and the landless occurred in increasing frequency in the form of arbitrary arrests, disappearances, expulsions, forced exile, political assassinations, election irregularities, extra-judicial killings, threats, and torture.

There appeared to be no respect for the rule of law, and corruption and fraud in the police and governing bodies became widespread.¹²⁵ Explanations for such patterns of abuse, persistence of corruption, and institutional constraints to reform include: the co-opting of civic leaders with government positions; limited control over police and the military by civilian authorities; the subversion, politicization, and intimidation of judges that result in low conviction rates and lenient penalties for abusers; the lack of accountability due to the presence of a presidential, rather than a parliamentary governmental system; the rise of drug cartels; the preference of the elite and civilian leaders for police maintenance of public safety; the belief, reinforced by the Roman Catholic Church, in elitism, patrimonialism, and corporatism; and the adoption of import-substitution policies that pit entrepreneurs against workers when dealing with issues such as economic efficiency, wages, and benefits.¹²⁶ In the Middle East and presumably Muslim majority countries, Islam is said to play a long term role in perpetuating behaviors, practices, and policies that inhibit democracy, development, and respect for human rights.¹²⁷ For example, Islamic courts and bureaucracies are historically accustomed to dealing with individuals, not corporations.

Given the great ethnic and religious diversity in African countries, the general goals of democracy have been ignored in favor of attempts to ensure national unity, stability, and order.¹²⁸ Furthermore, newly independent African states lack the administrative staffs and trained personnel to manage new societies; instead old authoritarian structures inherited from imperial power¹²⁹ have been adapted and legitimized.¹³⁰ Attempts after 1989 to change the structure of regimes and avoid ethnic manipulation¹³¹ have failed because new political parties have not involved those outside elite circles. Valuable natural resources, in high demand on world markets, have also been implicated in African human rights abuses.¹³² This issue is virtually the same as the one known as the Curse of Oil in the Middle East.¹³³ It seems that dictators and monarchs can get rich by mining or otherwise harvesting raw materials and using the income to monopolize all instruments of power the army, police, intelligence services while avoiding all transparency or power sharing.

If governments have to tax their citizens they need to develop real institutions, guarantee property rights, establish independent courts, develop an education system, engage in foreign trade, attract foreign investment, and permit freedom of thought.¹³⁷ According to Amy Ross, in addition to allowing rulers to co-opt citizens via direct cash payments to subjects, natural resource wealth eliminates the need to make difficult decisions about more efficient use of human resources, including women, and engage in foreign trade, which stimulates innovation.¹³⁸ A related economic argument sees corruption and embezzlement as endemic in a poor country.¹³⁹ All of the above explanations are compounded in many parts of Africa where draconian legal systems, a lack of institutionalized formality regarding marriage, divorce, and inheritance, and open-ended sedition laws contribute to a culture characterized by few democratic traditions, little accountability, and no respect for human rights.¹⁴⁰ As for the Former Soviet Union, its successor states, and more broadly, the countries where some version of Marxism or Socialism is the dominant political framework, institutional constraints that lead to human rights abuses are traced back to varied sources.

First, Marxist-Leninism was enveloped in an aura of Scientism based on Social Darwinism.¹⁵² Thus the imposed institutional constraints and accompanying human rights abuses were portrayed as having a scientific basis.

Regardless of who commits the human rights abuse, the national government inevitably gets blamed for not protecting its vulnerable populations, whether they be landless peasants or indigenous groups.

Such abuses bring into question the sincerity and seriousness of governments claiming to respect human rights and trying to improve their own human rights record.

The processes contributing to the ten possible theories proposed above to explain persistent human rights abuses can operate either serially or simultaneously in a country.

It is therefore perhaps no surprise that the maps and data they are based on did not show any systematic improvement in human rights abuses.

This strategy has been successful especially in enacting changes in legal systems to support economic development and women's rights.¹⁶⁸ Under this approach local human rights workers are advised: This approach doubts the efficacy of international campaigns, especially those that seek to embarrass rights-abusing individuals or elites.

¹⁷⁴ In contrast, there are those who recommend relying heavily on the international organizations to take the lead and carry the burden of extending human rights so long as this work is carried out in a culturally sensitive manner.¹⁷⁵ This position has become increasingly problematic, however.

It is becoming apparent that academic and professional organizations and societies are increasingly reluctant to mount campaigns on behalf of individuals or groups suffering from human rights abuses, lest doing so might lessen their chances of conducting joint research with scientists from that country at some future date.¹⁷⁶ A more accommodating position acknowledges that although the West cannot single-handedly confront other cultures, international human rights organizations do have a role to play in supporting local human rights groups.¹⁷⁷ They can gather, publish, and disseminate documentation on a country-by-country basis on the status of human rights.

In Africa these have been reasonably successful in disseminating information about human rights abuses, providing early warnings of impending human rights problems, and advancing early action mechanisms to curb human rights abuses.¹⁸⁰ It is important to remember that the analysis and explanation of maps of human rights abuses included in this article represent but one approach geographers can use when approaching human rights issues.

Contemporary geographers conduct their research within a multitude of philosophical and epistemological orientations including positivism, humanism, Marxism (radical and critical), postmodernism, feminism, applied, post-structuralism, and post-colonialism.¹⁸² Furthermore, contemporary geographers have much more sophisticated means of accessing, mapping, and analyzing data than previously dreamed. This means that geographers focusing on human rights issues have multiple ways of approaching and reporting their findings.

For geographers the challenge is two-fold: to make their work more accessible to the human rights community by publishing more broadly and to incorporate the research of the human rights community into their own work.